

**Committee:** United Nations Security Council

**Agenda:** *Deliberation on the Legal Status of Non-State Armed Groups and Their Impact on International Peace and Security*

**Chair:** Sai Dheeraj Tekmesh

**Vice Chair:** Sujay Valluri

## **LETTER FROM THE EXECUTIVE BOARD**

Dear Delegates,

Welcome to the United Nations Security Council. It is our pleasure to serve as your Executive Board for this committee, and we are excited to guide you through what promises to be one of the most layered and contested debates on the floor this conference: the legal status of non-state armed groups and what their rise means for international peace and security.

This Background Guide is meant to give you a working foundation, not the final word. Please read it closely, but do not treat it as a substitute for your own research into your country's foreign policy, voting record, and strategic interests on this issue.

Decorum matters in this committee as much as substance does. We expect delegates to engage respectfully with the Chair, the Vice Chair, and one another, even when (especially when) you disagree. Robust debate and personal courtesy are not in tension; the best delegates manage both at once.

Please come prepared. Non-state armed groups sit at the intersection of law, politics, and lived human consequence, and the questions this committee will wrestle with do not have clean answers. That is exactly what makes them worth debating.

If you have questions, procedural or substantive, before or during the conference, please do not hesitate to reach out to any member of the Executive Board. We are glad to help.

We look forward to seeing what you build together in committee.

Warm regards,

**The Executive Board**

## I. Introduction

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For most of the twentieth century, international law treated war as something that happened between states. Armies wore uniforms, governments signed treaties, and the United Nations Charter was built, in large part, to manage the behavior of sovereign states toward one another. That world still exists, but it is no longer the whole picture.

Today, some of the deadliest, longest-running, and most politically explosive conflicts on the planet are not fought between states at all. They are fought by groups that have guns, territory, and sometimes entire ministries of government, but no seat at the UN General Assembly. The Taliban governs a country. Hezbollah holds seats in the Lebanese parliament and a militia stronger than the national army. The Houthis control the capital of Yemen. Wagner Group mercenaries have fought wars on behalf of a state while that state denies any of it ever happened. None of these actors are "states" in the legal sense, yet all of them shape whether a region is at war or at peace.

This raises an uncomfortable question for the Security Council: what do you do with an actor that behaves like a state, fights like an army, and sometimes governs like a government, but was never invited to the table that drew the rules in the first place? Do you talk to them? Sanction them? Bomb them? Recognize them, just a little, just enough to get a ceasefire signed? International law was not really built with a clean answer to this question, which is precisely why it keeps landing back in this room.

Non-state armed groups (NSAGs) are not a single category with one set of motives. Some are insurgencies fighting for self-rule. Some are designated terrorist organizations pursuing ideological or religious goals through mass violence. Some are private military companies operating for profit, with a government quietly footing the bill. Some started as rebels and ended up running customs checkpoints and issuing passports. The Security Council's job is not to pretend these groups are all the same; it is to figure out what international law owes the civilians caught between them, what obligations these groups owe in return, and where state sovereignty ends and accountability for atrocities begins.

The stakes are not academic. International humanitarian law (IHL) was largely designed around state militaries that, at least on paper, answer to a chain of command, sign Geneva Convention obligations, and can be held responsible by their own government. Non-state armed groups frequently answer to no one outside their own ranks. When such a group commits a war crime, recruits a child soldier, or fires a missile at a commercial vessel in international waters, the question of who is responsible, and what the international community can lawfully do about it, becomes far murkier than it would be if a state army had done the same thing.

As a delegate, you are being asked to think like both a lawyer and a strategist. Where should the Council draw the line between a legitimate political movement and a terrorist organization? Should an armed group that provides electricity, schools, and policing to millions of people be treated differently from one that controls no territory at all? Can the Council engage with a group like the Taliban pragmatically, for humanitarian or counter-terrorism reasons, without conferring the legitimacy of statehood? And when a state arms, funds, or simply looks away from an armed group acting on its behalf, where does the state's own responsibility begin?

This committee will not resolve these tensions once and for all; nobody has. But the Security Council is one of the few rooms in the world where the attempt actually matters, where a resolution can shape sanctions regimes, peacekeeping mandates, and the diplomatic posture of major powers. Read the case studies below carefully. They are not abstract; they are the actual, current, unfinished business of international peace and security.

## II. Key Concepts and Definitions

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A precise vocabulary matters in this debate, since much of the disagreement between delegations comes down to which definitions they are using. The following terms recur throughout this guide and will likely anchor your draft resolutions.

- **Non-State Armed Group (NSAG):** An organized group, distinct from a state's official armed forces, that uses force to pursue political, ideological, economic, or territorial goals. The category spans insurgencies, militias, terrorist organizations, and private military companies, and is not defined by a single, universally agreed legal standard.
- **International Humanitarian Law (IHL):** The body of law, principally the 1949 Geneva Conventions and their 1977 Additional Protocols, that governs the conduct of parties during armed conflict. Common Article 3 and Additional Protocol II extend certain obligations to non-international armed conflicts, meaning NSAGs can bear direct obligations under IHL even though they never signed the treaties themselves.
- **Non-International Armed Conflict (NIAC):** Armed conflict between a state and one or more organized armed groups, or between such groups, occurring within a state's territory. Distinguished from International Armed Conflict (IAC), which occurs between states.
- **Belligerent / Combatant Status:** A legal status, typically reserved for state armed forces, that grants certain protections (such as prisoner-of-war treatment) under IHL. Most NSAG fighters do not qualify for combatant status, which complicates their legal treatment upon capture.
- **Terrorist Designation:** The formal listing of a group as a terrorist organization by a state, regional body, or the UN (notably the UNSC's 1267/1989/2253 ISIL (Da'esh) and Al-Qaida Sanctions List). Designation triggers asset freezes, travel bans, and arms embargoes, but criteria and lists vary significantly between states, creating major inconsistencies.
- **De Facto Authority:** A group that exercises effective control over territory and population, performing governmental functions such as taxation, policing, and service

delivery, without enjoying formal international recognition as a state or government (e.g., the Taliban since 2021).

- **Proxy Actor / State Sponsorship:** An NSAG that receives material, financial, or strategic support from a state in pursuit of that state's foreign policy goals, often used to pursue objectives a state cannot pursue directly without violating international law or risking direct confrontation.
- **Private Military and Security Company (PMSC) / Mercenary:** A commercial entity that provides armed personnel for military or security operations. The 1989 UN Mercenary Convention attempts to regulate mercenarism but has limited ratification and enforcement, leaving a substantial legal gray zone exploited by groups such as the Wagner Group.
- **Disarmament, Demobilization, and Reintegration (DDR):** A structured process for dismantling armed groups, disarming combatants, and reintegrating them into civilian or political life, often a centerpiece of peace agreements (e.g., Colombia's FARC process).
- **Command Responsibility:** The legal doctrine holding commanders accountable for crimes committed by forces under their effective control, including in NSAGs, where it is often difficult to prove a clear chain of command exists at all.

### III. Case Studies

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#### A. The Taliban (Afghanistan)

**Status:** De facto governing authority since 2021; formally recognized by one UN member state (Russia, July 2025); subject of ICC arrest warrants (July 2025) for senior leaders

##### Summary

The Taliban, designated by many states as a terrorist organization for two decades, seized control of Afghanistan in August 2021 following the withdrawal of US and NATO forces. It now governs the entire country, runs ministries, controls borders, and represents Afghanistan at a practical level in many international dealings, despite holding no UN seat and receiving no formal state recognition from almost the entire international community.

In July 2025, Russia became the first, and to date only, UN member state to formally recognize the Taliban's "Islamic Emirate" as Afghanistan's legitimate government, raising the question of whether other states, particularly regional neighbors with their own economic and security interests, will follow. That same month, the International Criminal Court issued arrest warrants for the Taliban's Supreme Leader and de facto Chief Justice, the first ICC warrants built around the charge of gender persecution as a crime against humanity, citing the regime's systematic restrictions on women and girls.

Short of formal recognition, dozens of states now practice what amounts to pragmatic engagement: accepting Taliban-appointed diplomats, reopening embassies in Kabul, and in some cases coordinating directly with the Taliban on deportations of Afghan migrants and counter-terrorism against the ISIS affiliate ISIS-Khorasan (ISIS-K), all while declining to use the word "recognize."

##### Relevance

Afghanistan remains the starkest current example of an entity that exercises full territorial and governmental control while almost universally denied recognition, but Russia's 2025 move shows that the united front on non-recognition is no longer airtight. The simultaneous ICC warrants raise a genuinely novel legal question: can systematic gender persecution function as an

independent bar to governmental legitimacy, separate from a group's effective control of territory? This case forces the Council to separate "engagement" from "recognition" and to consider whether human rights conduct should be a hard precondition for normalizing relations with a non-state-turned-governing armed group.

## **B. Hezbollah (Lebanon)**

**Status:** Designated terrorist organization (by US, UK, EU, Gulf states, and others); militarily weakened since 2024; under a state-led disarmament process that remains incomplete

### **Summary**

Hezbollah emerged in the 1980s as a Shia militia backed by Iran and became one of the most heavily armed non-state actors in the world, with a military capability that in many respects exceeded that of the Lebanese national army, while also operating as a mainstream political party with seats in parliament and cabinet posts.

Hezbollah's intervention in the Gaza war escalated into a full-scale conflict with Israel through 2024, in which Israel killed much of Hezbollah's senior leadership, including longtime Secretary-General Hassan Nasrallah, and severely degraded its missile arsenal. A US- and France-brokered ceasefire took effect in November 2024, committing Lebanon to bring all weapons under state control, consistent with the Council's own Resolutions 1559 (2004) and 1701 (2006).

Lebanon's government adopted a phased disarmament plan in September 2025. In January 2026, the Lebanese Army announced it had completed Phase 1, establishing state control over the area between the Litani River and the Israeli border. Hezbollah did not obstruct this phase but has refused to surrender weapons north of the Litani, calling further disarmament a "grave sin" pending an Israeli withdrawal from five points it still occupies inside Lebanese territory; Israel, meanwhile, has continued near-daily strikes inside Lebanon, arguing Hezbollah is rearming faster than it is being disarmed.

### **Relevance**

Hezbollah remains the clearest example of a hybrid actor: simultaneously a legitimate domestic political party and a heavily armed proxy force backed by a foreign state. Its ongoing, contested

disarmament is now a live test of whether a weakened but still-armed NSAG can be demilitarized through negotiated, state-led pressure rather than negotiated peace (as in Colombia) or outright defeat, and of what obligations a guarantor state (here, Israel) owes in return for cooperation it demands.

### **C. The Islamic State (ISIL/ISIS/Da'esh)**

**Status:** Territorial control lost (2017–2019); residual insurgent and affiliate networks remain active globally

#### **Summary**

At its peak in 2014–2015, the Islamic State controlled territory across Iraq and Syria roughly the size of the United Kingdom, governed millions of people, ran courts, collected taxes, and declared itself a caliphate, a claim to statehood and sovereignty that no state recognized. A US-led international coalition and local ground forces eventually dismantled its territorial control by 2019.

The Security Council responded with an unusually coordinated set of resolutions, including Resolution 2170 (2014), Resolution 2178 (2014) on foreign terrorist fighters, and Resolution 2253 (2015) expanding the sanctions list and freezing terrorist financing networks.

#### **Relevance**

ISIL demonstrates that an NSAG can exercise full territorial sovereignty in practice while being universally rejected in law and treated purely as a security threat rather than a self-determination claim. It is the leading case for transnational counter-terrorism cooperation, foreign fighter flows, and the limits of treating a non-state group's territorial control as legally meaningful absent any claim to represent a "people" in the self-determination sense.

### **D. FARC (Colombia)**

**Status:** Demobilized; transitioned into a registered political party (Comunes) following the 2016 peace agreement

#### **Summary**

The Revolutionary Armed Forces of Colombia (FARC) waged a Marxist insurgency against the Colombian state for over five decades, financed substantially through the drug trade and kidnapping for ransom. The 2016 peace agreement, reached after four years of negotiation, established a Special Jurisdiction for Peace (transitional justice tribunals), DDR programs for roughly 13,000 combatants, and a pathway for FARC to become a legal political party.

Implementation has been uneven: some former combatants have been assassinated, dissident factions have rearmed, and rural security gaps left by FARC's withdrawal have in places been filled by other armed groups, including remnants of the ELN and criminal organizations.

### **Relevance**

Colombia is the leading model of a negotiated, legally structured transition from non-state armed group to political party, with international support (including a UN Verification Mission) backing implementation. It demonstrates both the potential of DDR and transitional justice frameworks and the difficulty of making peace agreements durable once the cameras leave.

## **E. The Houthis / Ansar Allah (Yemen)**

**Status:** Control over Yemen's capital, Sana'a, and much of the northern and western population centers; maritime attack campaign paused since late 2025 but threatened again amid regional escalation

### **Summary**

The Houthi movement seized Sana'a in 2014 and has since fought a grinding war against a Saudi-led coalition backing Yemen's internationally recognized government. The Security Council adopted Resolution 2216 (2015), demanding Houthi withdrawal and authorizing an arms embargo, but the group remains the de facto authority over a majority of Yemen's population.

Beginning in November 2023, the Houthis attacked well over 150 commercial vessels in the Red Sea and Gulf of Aden, sinking several ships and killing multiple seafarers, in declared solidarity with Gaza. The Council responded with Resolution 2722 (2024), condemning the attacks and affirming freedom of navigation, while the US and UK led coalition strikes against Houthi launch sites under Operation Prosperity Guardian.

Following the October 2025 Gaza ceasefire, the Houthis announced a halt to attacks on shipping and on Israel, and traffic through the Red Sea and Suez Canal began cautiously recovering. That pause has proven conditional: amid a separate 2026 escalation between Israel, the United States, and Iran, Houthi officials signaled they were prepared to resume maritime attacks in solidarity with Tehran, underscoring that the group calibrates its campaign to regional politics rather than to the Yemeni conflict alone.

### **Relevance**

Yemen illustrates how a non-state armed group's actions can spill far beyond its own civil war and threaten international peace and security in the literal, global-commons sense intended by the UN Charter, here, freedom of navigation and global shipping. The on-again, off-again nature of the campaign also raises a distinct accountability question: how should the Council respond to a group that treats a major global trade artery as a lever to be pulled and released based on conflicts in which it is not even a direct party?

## **F. Private Military Companies: From the Wagner Group to Africa Corps**

**Status:** Wagner's African networks are being absorbed into "Africa Corps," a force placed directly under Russia's Ministry of Defense; the transition is incomplete and recently suffered a significant military setback in Mali

### **Summary**

The Wagner Group operated for years as a nominally private military company while fighting wars on behalf of the Russian state in Syria, Ukraine, Libya, Mali, and the Central African Republic, allowing Moscow a degree of deniability that direct deployment of its own armed forces would not have provided. After founder Yevgeny Prigozhin's 2023 mutiny and death, Russia moved to fold most of Wagner's African operations into Africa Corps, a successor force under the explicit, open control of the Ministry of Defense, present in Mali, Burkina Faso, Niger, and Libya.

The Central African Republic resisted this transition longest, with Wagner-linked figures retaining direct access to President Touadéra until early 2026, when Moscow finally compelled the switch to Africa Corps following his re-election. In April 2026, a coordinated offensive by

Tuareg separatists and an Islamist coalition forced Africa Corps to abandon the northern Malian town of Kidal, a symbolically important and costly defeat that raised public questions about whether the rebranded force can deliver the security outcomes that originally justified its presence.

The 1989 International Convention against the Recruitment, Use, Financing and Training of Mercenaries has been ratified by relatively few states and excludes many PMSC personnel from its narrow legal definition of "mercenary," leaving a substantial accountability gap that both Wagner and Africa Corps have been credibly accused of exploiting, including through documented atrocities against civilians in Mali and the Central African Republic.

### **Relevance**

PMSCs blur the line between state and non-state actors in a way few other categories do, and the Wagner-to-Africa-Corps transition is a live experiment in what happens when a state tries to formally absorb a force it once used for deniability. The Kidal withdrawal is instructive: bringing the force under direct Ministry of Defense control did not obviously make it more effective or more restrained, which tests whether nominal state control closes the accountability gap PMSCs create, or simply relocates it.

## **G. Al-Shabaab (Somalia) and Boko Haram / ISWAP (Lake Chad Basin)**

**Status:** Active insurgencies controlling rural and peri-urban territory; subject to ongoing African Union and regional counter-insurgency operations

### **Summary**

Al-Shabaab, an Al-Qaida affiliate, controls substantial rural territory in Somalia and continues to mount attacks on the capital and regional cities despite years of African Union Transition Mission in Somalia (ATMIS) operations. Boko Haram and its offshoot, the Islamic State West Africa Province (ISWAP), have waged an insurgency across Nigeria, Chad, Niger, and Cameroon since 2009, marked by mass abductions, including the 2014 Chibok schoolgirls kidnapping, and the recruitment of child soldiers.

Both conflicts have produced massive internal displacement and chronic humanitarian access problems, with aid organizations frequently unable to safely reach civilians in areas under armed group control.

### **Relevance**

These cases highlight the recurring humanitarian cost of protracted NSAG insurgencies in fragile states, the limits of regional military responses absent political and developmental solutions, and the particular legal and moral urgency of child recruitment and abduction as IHL violations attributable directly to a non-state actor.

## **H. Hamas (Gaza)**

**Status:** Lost exclusive governing control over Gaza under a US-brokered ceasefire and transitional framework endorsed by the Security Council (Resolution 2803, 2025); disarmament demanded but not completed

### **Summary**

Hamas won Palestinian Legislative Council elections in 2006 and governed the Gaza Strip as its de facto authority from 2007. Its October 7, 2023 attack on Israel, which killed approximately 1,200 people and took roughly 250 hostages, triggered a two-year Israeli military campaign in Gaza with an extraordinarily high civilian death toll.

In October 2025, Israel and Hamas signed onto a US-brokered "Comprehensive Plan to End the Gaza Conflict." A ceasefire took effect on October 10; all living hostages were released within days and the remains of deceased hostages were progressively returned. The Security Council endorsed the plan in Resolution 2803 (2025), establishing an international "Board of Peace" and authorizing a Stabilization Force, and in January 2026 a technocratic "National Committee for the Administration of Gaza" was stood up to handle day-to-day governance, explicitly without a role for Hamas.

Implementation has stalled on its central, second-phase requirement: Hamas's disarmament. As of mid-2026, Israeli forces control roughly half of Gaza behind a demarcation line, Hamas retains control and weapons in the remainder, and both sides have traded accusations of ceasefire violations amid continued Israeli strikes and isolated Hamas attacks on Israeli soldiers.

Mediators have floated a conditional amnesty and weapons buyback for fighters willing to disarm, an offer Hamas has so far rejected as a one-sided demand.

**Relevance**

Gaza is now arguably the most direct global test of whether an internationally endorsed framework can strip a long-governing armed group of both political authority and weapons without its consent. It forces the Council to confront what "demilitarization" actually requires in practice, how accountability should be apportioned across all parties to a conflict marked by serious allegations of IHL violations on multiple sides, and what becomes of two million civilians caught in the gap between a ceasefire that is holding and a peace that has not yet arrived.

## IV. Major Discussion Points

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These questions are not exhaustive, but they represent the throughlines most delegations will need a clear position on before drafting working papers.

### 1. Defining "Non-State Armed Group"

What minimum criteria, organization, command structure, capacity to sustain armed violence, should distinguish an NSAG from a criminal gang, a riot, or a spontaneous uprising? Should the definition used for IHL purposes (organization and intensity, per Common Article 3) be the same definition used for sanctions and counter-terrorism purposes?

### 2. Terrorist Designation and Its Consistency

Should the Security Council move toward a single, unified terrorist designation framework, replacing the current patchwork of national and regional lists? What happens when permanent members disagree on whether a given group (e.g., the Houthis, Hezbollah, or a Kurdish armed faction) belongs on such a list?

### 3. Applying IHL to Actors Who Never Signed It

How can the international community better enforce Common Article 3 and Additional Protocol II obligations against groups that have no formal treaty relationship with the Geneva Conventions? What incentives, if any, exist for an NSAG to comply with IHL it never agreed to?

### 4. Engagement Without Recognition

Under what conditions can or should the UN and member states engage diplomatically with a de facto authority like the Taliban for humanitarian, counter-terrorism, or stability purposes, without that engagement being read as conferring legitimacy or recognition?

### 5. State Responsibility for Proxy and Private Forces

When a state arms, funds, trains, or contracts an NSAG or PMSC to act on its behalf, at what point does the state itself bear direct legal responsibility for that group's conduct? Does the existing law of state responsibility (and the International Court of Justice's "effective control" test) need to be revisited for the PMSC era?

## **6. Accountability for Mass Atrocities and Child Recruitment**

What enforcement mechanisms, beyond the International Criminal Court's limited jurisdiction, can hold NSAG commanders individually accountable for war crimes, sexual violence, and the recruitment of child soldiers?

## **7. Humanitarian Access in Areas Under NSAG Control**

How should the Council balance counter-terrorism sanctions, which can criminalize even incidental contact with designated groups, against the practical necessity of humanitarian organizations negotiating access with whoever actually controls a given territory?

## **8. DDR, Amnesty, and Transitional Justice**

What lessons from Colombia's FARC process, and from less successful demobilization efforts elsewhere, should inform a general UN framework for transitioning armed groups into political life? Should amnesty ever be offered in exchange for disarmament, and if so, under what limits?

## **9. Regulating Private Military and Security Companies**

Should the Council push for a binding, widely ratified international instrument regulating PMSCs, building on the non-binding 2008 Montreux Document and the draft UN convention on private military and security companies? What would effective enforcement actually require?

## **10. Self-Determination Claims by Armed Groups**

When does an NSAG's use of force constitute a legitimate exercise of a people's right to self-determination, as opposed to an illegal use of force against a sovereign state? Should this committee's prior work on self-determination inform a more specific framework here?

## V. Conclusion

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Non-state armed groups are not a passing feature of contemporary conflict; they are, in many regions, the primary actors shaping whether peace holds or collapses. From a de facto government in Kabul to mercenaries operating across three continents, from a hybrid militia-and-political-party in Beirut to a governing authority at war in Gaza, these groups occupy a legal space the UN Charter's founders did not fully anticipate.

The Security Council cannot legislate these groups out of existence, nor can it afford to treat international law as if they do not exist. What it can do is work toward clearer, more consistently applied standards: for when engagement is appropriate without amounting to recognition, for when IHL obligations bind an actor regardless of its legal status, for when a state bears responsibility for the proxy or private forces it deploys, and for how the international community holds individuals, not abstract organizations, accountable for atrocities.

As you prepare your positions, resist the temptation to treat every non-state armed group as interchangeable. A negotiated, demobilizing insurgency, a transnational terrorist network, a state-backed mercenary force, and a de facto government that emerged from an armed group are not the same problem, even if they all fall under the same heading. Your task is to find where genuine common principles exist, and where the Council must instead build a framework flexible enough to handle very different realities without collapsing into either naive equivalence or rigid one-size-fits-all rules.

## VI. Recommended Readings

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- Geneva Conventions of 1949, and Additional Protocols I and II (1977), particularly Common Article 3
- UN Security Council Resolution 1267 (1999) and the consolidated ISIL (Da'esh) and Al-Qaida Sanctions List
- UN Security Council Resolutions 2170, 2178, and 2253 (foreign terrorist fighters and counter-terrorism financing)
- UN Security Council Resolution 2216 (2015) on Yemen
- International Convention against the Recruitment, Use, Financing and Training of Mercenaries (1989)
- The Montreux Document on Private Military and Security Companies (2008)
- Rome Statute of the International Criminal Court, Article 8 (war crimes)
- Reports of the UN Secretary-General on Children and Armed Conflict
- ICRC Customary International Humanitarian Law Database
- Final Agreement to End the Armed Conflict and Build a Stable and Lasting Peace (Colombia, 2016)